ZODWA SIMBI

and

CHARLES SIMBI

v

NEW GENERATION MINING SYNDICATE

and

THE PROVINCIAL LAND OFFICER - MIDLANDS PROVINCE

and

THE PROVINCIAL MINING DIRECTOR - MIDLANDS PROVINCE

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
MASVINGO 29 June 2026 & 28 July 2026

This is a court application for a declaration of nullity and consequential relief in terms of r 59 (1) of the High Court Rules, 2021, read together with s 14 of the High Court Act (*Chapter* 7:06).

E. Mandipa, for the applicants
R. Chidawanyika, for the 1st respondent

DUBE-BANDA J

[1] This is a court application for a declaration of nullity and consequential relief filed in terms of r 59 (1) of the High Court Rules, 2021 as read together with s 14 of the High Court Act [*Chapter 7:06*]. The applicants seek an order couched in the following terms:

a) The application for a declaration of nullity and consequential relief be and is hereby granted.
b) The Court application in HCMSC230/24 be declared fatally defective and therefore null and void.
c) Consequent to the declaration in paragraph 2 above the court order or judgment in HCMSC230/24 be declared null and void, of no force and effect and hereby set aside.

[2] The application is opposed by the first respondent, New Generations Mining Syndicate. The second and third respondent neither filed opposing papers nor sought to participate in the

hearing of this matter. I take it that they have taken a position to abide by the decision of this court.

Factual background

[3] This application will be better understood from the following background. On 27 May 2024, New Generations Mining Syndicate filed a court application in case number HCMSC230/24 "main case". It sought declaratory and consequential relief against Zodwa Simbi and Charles Simbi, the applicants in this matter. On 12 November 2024, this court, per ZISENGWE J, granted a default judgment in favour of New Generations Mining Syndicate. The order granted is couched in the following terms:

a) "It is hereby declared that applicant's mining claim being Fletcher 986 is not situated under plot 42 Kanuck 4 Farm.
b) The conduct of 1st respondent and/or 2nd respondent of interfering with the applicant's operations at her claim which is situated at Fletcher 986 is unlawful and illegal.
c) The 1st and 2nd respondents to pay the costs of this application."

[4] It is this order that the applicants seek that it be declared fatally defective, null and void and of no force and effect and that it be set aside. It is against this background that the applicants filed this application seeking the order stated above.

Preliminary objections

[5] Other than resisting the relief sought on the merits, the first respondent, in its opposing papers and oral submissions, took a preliminary objection, *viz*, that this is an improper or defective application, in that it seeks to set aside an order of this court through a declaration of nullity. It was submitted that a judgment or order of this court can be set aside only in two ways, that is, through an application for rescission or by an appeal to the Supreme Court.

[6] *Per contra*, the applicants argued that a default judgment may be set aside by an application for rescission of judgment or a declaration of nullity. For this proposition, Mr *Mandipa*, counsel for the applicants, placed heavy reliance on *Guoxing Gong* v *Major Logistics (Pvt) Ltd & Anor* S 2-17, where the court said:

> "It is trite that save in special circumstances which do not concern us here, no appeal lies to this court against a default judgment which is normally reversed by rescission of judgment or a declaration of nullity."

[7] It was argued that the preliminary objection has no merit and ought to be dismissed, and the matter determined on the merits.

[8] To put this preliminary objection into context, it is important to lay bare the high watermark of the applicants' case. The applicants contend that they seek declaratory orders in terms of s 14 of the High Court Act [*Chapter 7:06*] on the basis that the order in the main matter is a nullity. The theme that permeates through the whole application is that the court application in the main matter is fatally defective and therefore null and void, and that because of this invalidity, the court order is also null and void, of no force and effect and ought to be set aside. The submission that the order in the main matter is a nullity is predicated on the contention that the relief in the main matter was sought under the wrong law. It was strenuously argued that the relief in the main matter was sought under the wrong law, thereby rendering both the relief and application fatally defective and thus null and void. In that in the main matter, New Generations Mining Syndicate approached this court in terms of s 4 of the Administrative Justice Act [*Chapter 10:28*] "the Act" seeking a *declaratur*. It was submitted that s 4 of the Act does not provide for declaratory relief, and in the circumstances, the declaratory relief was sought under the wrong law. It was stressed that to the extent that the application was based on a wrong law, it is thus fatally defective, null and void, and the order itself is null and void.

[9] It was further submitted that the relief sought and granted fell outside the purview of s 3 of the Administrative Justice Act and such relief could not and should not have been granted by this court. It was argued that this fatal defect renders the order in the main matter null and void. It was argued further that there was no averment in the founding affidavit of non-compliance with s 3 of the Act by an administrative authority upon which non-compliance relief could be sought in terms of section 4 of the Act.

[10] It was submitted further that the non-citation, in the main matter, of the Minister of Lands, Agriculture, Fisheries, Water and Rural Development rendered the application fatally defective, and the order obtained therefrom null and void and susceptible to be set aside on this basis.

[11] It was further contended that this court in the main matter should have declined its jurisdiction because New Generations Mining Syndicate did not exhaust local or domestic remedies. In that the dispute envisaged in the main matter is a dispute over the allocation of land or alleged allocation of land or claim to allocation of land and the investigation and

determination of such matters is constitutionally reposed in the Zimbabwe Land Commission. It was argued that considering that the jurisdiction of this court was invoked in a matter in which the court could have withheld and declined to exercise its jurisdiction, the order obtained is susceptible to being declared a nullity and to be set aside.

Analysis

[12] The first issue to be considered is what exactly is the applicants' case. It must be unmasked and be seen for what it is. Mr *Mandipa* argued that it was not the applicants' case that the judge who granted the order in the main matter was wrong, because the order was granted in default, and not on the merits. This argument cannot withstand simple scrutiny. This is so because a judge does not grant an incompetent order because the application is not opposed. In an unopposed matter, the judge must still be satisfied that the order sought is, on the evidence, facts and the law, merited. If not, the application will be refused notwithstanding that it is unopposed. In *Benyure v Benyure* (316 of 2025) [2025] ZWHHC 316 (29 January 2025) the said the fact that the matter was not defended was inconsequential. The grant of an order is a judicial function. The court must be satisfied that a litigant has proved his or her case in terms of the requirements of the law. Therefore, the submission that in the main matter the court did not consider the merits because the order was granted in default, is not supported by the law.

[13] In addition, it is important to understand that it matters not what a litigant chose to name or characterise its case; the court goes beyond the naming and characterisation, and consider, on the facts, evidence and the relief sought, what the actual case is about and what is sought to be achieved. A closer examination of this application shows that the applicants are aggrieved by the granting of the order in the main matter. Cut to the borne, the applicants contend that the presiding judge should have declined to grant the order sought in the main application. In other words, the order is assailed on the basis that it was not supported by the facts and evidence placed before the presiding judge. Further, it is contended that it was not supported by the law. Put bluntly, the net effect of the applicants' case is that the judge was wrong in granting the order in the main matter. In essence, the applicants' case is that this court was wrong in acceding to the relief sought by the New Generations Mining Syndicate in the main matter. The argument that applicants are not contending that the judge was wrong, is just an attempt to "pull wool over the head of this court."

[14] The applicants are approaching this court, contending that a judge of this court must find that a judge who granted the order in the main matter was wrong. In other words, a judge of the same court, of parallel jurisdiction, is being requested to find that the judge who granted the order in the main matter was wrong. This is novel. It is startling. It has no precedent in this jurisdiction. It is an invitation to the judge of this court to stray into the lane of the Supreme Court. This court or a judge of this court has no power to stray into the prerogative of the Supreme Court. This is trite. This is basic. This is elementary. See *Unitrack (Private) Limited* v *Telone (Private) Limited* S 10-18. In *City of Mutare* v *Mawoyo* 1995 (1) ZLR 258 (HC) at 266E – 267C it was said:

> "In *Parker* v *Parker & Ors supra* SCOTT J was asked to alter an order by SANDURA JP directing that an exception in case HC 3196/84 and an application in case HC 1108/85, both cases involving the same parties, be heard together on the same occasion. Declining jurisdiction, SCOTT J said at 85B:
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> > 'The whole thrust of the reasons advanced by Mr O'Meara seems to point to an assertion that in his view the order was wrongly made. As a judge of the High Court, it is not up to me to vary or alter an order of a judge of parallel jurisdiction, short of expanding on it.'"

[15] I underscore that as a judge of the High Court I have neither power nor competence to find that another judge of the High Court was wrong. In fact, this application is an appeal against the order granted by my brother ZISENGWE J, under the guise that it is an application to set aside the order on the premise that it is a nullity. As a judge of the High Court, I neither have power nor competence to sit in appeal over a judgment or order of a judge of parallel jurisdiction. This is elementary. It matters not how the matter is disguised, how it is brought to court, and what name is given to it. At the centre of the applicants' case is that the judge who granted the order in the main matter was wrong and the order ought to be set aside.

[16] In general, a litigant aggrieved by a default judgment or order of this court may seek its rescission in terms of the procedures prescribed in the law. In *Zvinavashe v Ndlovu* 2006 (2) ZLR 372 (S) at 375 B-C GWAUNZA JA (as she then was) aptly stated that:

> "Counsel for the respondent contends correctly that a default judgment can only be set aside by a successful application for rescission of the judgment under the rules of the relevant court. The application must be made by the defaulting party himself, as indicated by the expression 'purging his default'. It follows that in casu, the appellants default remained unpurged even as the learned judge *a quo* considered the merits of the matter and gave reasons for his judgment."

[17] A litigant cannot come to this court, seeking that a default judgment or order of this court be declared null and void and be set aside. It is in this context that Mr *Mandipa* misunderstood and put out of context the judgment in *Guoxing Gong* v *Major Logistics (Pvt) Ltd & Anor* S 2-17, wherein the Supreme Court said:

> "*It is trite that save in special circumstances which do not concern us here, no appeal lies to this court against a default judgment which is normally reversed by rescission of judgment or a declaration of nullity.* It therefore, follows that in the absence of special circumstances, no valid ground of appeal can be laid at the door of this court concerning the propriety or otherwise of a default judgment. Whether or not there was non-joinder or any other irregularity pertaining to the default judgment that is a complaint to be laid at the court *a quo's* door and not this court. There being no special circumstances pleaded in this case, this court will not entertain any argument calculated to impugn the validity of the default judgment at hand." (My emphasis).

[18] My understanding of *Guoxing Gong* v *Mayor Logistics (Pvt) Ltd. & Another* (*supra*) is that a litigant aggrieved by a default judgment granted by this court can seek rescission of judgment in this court. A litigant who seeks a declaration of nullity of an order of this court cannot seek such a declaration in this court. There is no doubt that a competent court can declare that a default order is a nullity and set it aside. My view is that in respect of an order of this court, the High Court is not a competent court to declare such an order a nullity. See *Muchakata* v *Nertherburn Mine* 1996 (2) ZLR 153(S), 157 B-C; *Matanhire* v *BP Shell Marketing Services (Pvt) Ltd* 2005 (1) ZLR 140 (S) at 147 G-H; *Folly Cornishe (Pvt) Ltd & Another* v *Tapomwa N.O & Others* S 26-14. This court has power and competence to declare a judgment or order of the magistrates court a nullity. The Supreme Court has power and competence to declare a judgment or order of the High Court a nullity. The view I take is that the applicants are seeking, in this court, relief that is not available in this court. It is in this context that I agree with Mr *Chidawanyika* that this application is fatally defective in that it seeks a relief that this court cannot grant.

[19] I cannot even begin to engage with the merits of this case. Because such an exercise will require that I determine whether the relief sought in the main application was sought under the wrong law; whether the relief sought in the main matter fell outside the ambit of s 3 of the Administrative Justice Act [*Chapter 10:28*]; whether the non-citation of the Minister of Lands rendered the main application fatally defective; and whether the failure to exhaust domestic remedies rendered the main application defective. In carrying out such an exercise, I will have to examine whether the judge who granted the order in the main matter was right or wrong.

Because if I find that the main matter was predicated on the wrong law, I must then conclude that the judge ought to have declined to grant the order, therefore he was wrong in granting it. As stated above, as a judge of the High Court I have neither power nor competence to engage in such an inquiry. It is trite that our constitutional architecture is that each court to its lane. No straying is permitted. If accede to the relief sought in this application I will be straying into the lane of the Supreme Court, which is impermissible. In the circumstances, this application was not properly thought out. It is fatally defective and ought to be struck off the roll without a consideration of the merits.

[20] The first respondent sought costs on an attorney and client scale. The scale of attorney and client is an extraordinary one which should be reserved for cases where it can be found that a litigant conducted itself in a clear and indubitably vexatious and reprehensible manner. Such an award is exceptional and is intended to be very punitive and indicative of extreme opprobrium. It should only be in relation to conduct that is clearly and extremely scandalous and objectionable that these exceptional costs are awarded. See *H J Voster (Pvt) Ltd* v *Parks and Wildlife Management Authority* 2020 (2) ZLR 1075 (H); *Railings Enterprises (Pvt) Ltd* v *Luwo & Ors* 2020 (2) ZLR 51 (H). This application is so frivolous and vexatious that I cannot even begin to imagine how it was even conceived. It is an abuse of the process of this court. It is so thoughtless beyond measure. In addition, the applicants first filed an application for rescission of judgment, which was not prosecuted and deemed abandoned and dismissed by the Registrar. Then they came up with this application for a declaration of a nullity, which is unknown in our law. There is no reason for the first respondent to be put out of pocket by the reckless conduct of the applicants in filing an application, which for all intents and purposes amounts to an appeal to this court, against an order of this court, disguised as something else. In its heads of argument, the first respondent argued thus:

> "In light of the foregoing, the applicants' conduct is an abuse of this Honourable Court's process. Having previously failed in a rescission application, they now improperly seek to re-litigate the same matter under the guise of an application for declaration of nullity. A procedural mechanism wholly unsuitable for setting aside a valid court order. Their lack of bona fides is further evidenced by their non-disclosure of the prior rescission application."

[21] I agree with these submissions. This is a case where costs on an attorney and client scale are merited.

In the result, it is ordered as follows:

a) The preliminary objection that this application is improper and defective is upheld.
b) This application be and is hereby struck off the roll.
c) The applicants, jointly and severally, each paying the other to be absolved, pay the first respondent's costs on an attorney and client scale.

Mandipa Makwara and Chikukwa Legal Practice, applicants' legal practitioners
Chitere Chidawanyika & Partners, 1st respondent's legal practitioners